

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402474	PEREZ vs LE	MOTION FOR CONTINUANCE

Tentative Ruling:

Motion Denied without prejudice. No proof of service filed.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402474	PEREZ vs LE	MOTION FOR CHANGE OF VENUE; DECLARATION OF LISA PEREZ

Tentative Ruling:

Motion Denied without prejudice. No proof of service filed.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600422	MARTINEZ vs BUCKEYE RETIREMENT CO., LLC	ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE)

Tentative Ruling:

Summary of Ruling:

The Court grants the Special Motion to Strike Plaintiffs' Complaint as to all causes of action alleged against Defendant Walker alleged under the 1st, 2nd, 4th, 5th, 6th, and 7th cause of action for (1) extrinsic fraud, (2) abuse of process, (3) aiding and abetting, (4) civil conspiracy, (5) litigation privilege avoidance, and (6) quiet title/declaratory relief, respectively.

Defendant Walker has satisfied the first-prong showing of demonstrating that the causes of action arise out of activities which are protected under the anti-SLAPP statute (Code Civ. Proc., § 426.16(e).) Once the burden shifted to Plaintiffs, they fail to satisfy the second prong of the anti-SLAPP analysis by failing to demonstrate a reasonable probability of prevailing on the causes of action alleged against Defendant Walker.

Defendant Walker's Request for Judicial Notice Exhibits A-D is granted to the extent the matters for which judicial notice is requested exist in court records or files, but they are not accepted for the truth of the matters stated, unless the matters are indisputably true. (Evid. Code, §452(d) [judicial notice may be taken of records of any court of this state]; See *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1569.)

In light of this ruling to grant the motion, Defendant Walker's concurrently filed demurrer is rendered moot.